

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

August 8, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Dr. Rinne, Mr. Pierson, Mr. Spiker and Mr. Valdez. Absent: Mr. Collins. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Allen, and pursuant to support received by Mr. Pierson and Ms. Ash, agenda items #10 and 15 (e) were removed from the Consent Agenda. Upon request by Mr. Brown, and pursuant to support received by Dr. Rinne and Mr. Allen, agenda item #12 was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 25, 2011. Motion (per Consent Agenda) carried.

Mr. Valdez declared a conflict of interest (business interest) due to a voucher payable to radio station KYOY FM and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Ms. Broyles. Upon inquiry, Todd Feezer, Assistant Director, Parks and Recreation, provided information pertaining to a voucher payable to La Familia (\$750.00) for advertising services for the Superday event. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input on the proposed sale of real property owned by the City of Cheyenne, described generally as Lot 2, Block 1, Cahill Park Addition (located at the southeast corner of Windmill Road and Dell Range Boulevard) to Menard, Inc. which would generate economic development benefits for the City of Cheyenne pursuant to Wyo. Stat. §15-1-112 (b). Estimated proposal value is \$7.2 million dollars. Matt Ashby, Planning Services Director, reviewed time frames regarding governing body actions, public notices and the negotiation process involving the proposed sale. He provided information on valuation of the property; proposed purchase price and general terms of the proposed sale, which will include a written purchase and sales agreement and a development agreement; public infrastructure to be constructed of benefit to the City, and other items discussed during the negotiation process. He advised discussions have recently taken place involving subsequent refinements to some elements affiliated with the agreements, including items involving infrastructure and naming rights for a future athletic field, stating Menard is no longer interested in naming rights. Mr. Ashby provided an explanation on assessment of the current valuation of the property since a 2006 property appraisal was conducted, and non-comparable land sales

circumstances affecting the availability of an updated formal appraisal, which had been requested. He also provided information on developer costs, such as community development fees and construction, and potential community economic impact relative to the opening of a Menard business in the City. Donald James Perrott Macneil questioned the proposed use for the land as he thought the government had stipulated the land was to be used for park land, and spoke in opposition to sale of the property. Dan White, City Attorney, advised the Veterans Administration (VA) did have a restriction on the land when initially conveyed to the City, but in 2007 the VA provided a release of restrictions on the use and as a result of this document the City can now make use of the property which is subject to approval by the VA administration, noting the VA has provided approval for the intended use affiliated with the proposed sale to Menard. Frank Cole, Cole Shopping Center, expressed concern that the land's valuation has been estimated too low, and stated, since there have been changes in the proposed valuation, re-advertising with current numbers should be done. He cited examples of other large commercial property developers who have assisted with public infrastructure for the City in conjunction with development projects, and discussed expenses to buyers vs. developers; lack of submittal of a site plan to date, and leaving the property as a public park area. Delmar Stone spoke about the past and future "vision" for the parcel, which should remain public park and open space; commented on the growing community need for open space, noting the parcel has many recreational facilities and uses nearby; expressed concern that "vision" is being clouded by dollar signs, and urged reconsideration of any sale of the property. Edward Melko spoke in opposition to the proposed sale; questioned whether other City park lands were set aside in trade for this parcel as affiliated with federal designations; expressed concern with increased traffic and expansion of the area's use in a commercial way, and suggested other sites he felt would be better suited for the Menard business. Upon inquiry, Todd Feezer, Assistant Director, Parks and Recreation, advised there were two different subjects with regard to release of restrictions on the land, one was the restriction on use which was lifted by the VA and the other dealt with Land and Water Conservation (LCW) funding grants in which designation of the property was traded for other City open space properties based on appraised value. He provided information on the properties involved in the trade designation under LCW provisions and commented on possible future plans for the traded lands relative to recreational purposes. Discussion included the following topics: Past proposed commercial development (i.e. hotel, restaurant, retail) plans for the parcel; time frame allowed for accepting requests for proposals relative to other potential interested parties; comments in support as well as opposition to sale of the land; holding off on a sale at this time due to depressed economic conditions and property values; acquiring additional proposals; positive location of the Menard business for east Cheyenne residents; whether a business of this type would generate additional economic benefits to the City, and a parking variance for the proposed development, requested by Menard, that was recently approved by the Board of Adjustment. Upon inquiry, Mr. Ashby provided information on the parking variance for reduced number of spaces that was requested by Menard's, and advised the development would be subject to the adopted large scale commercial development regulations which address such items as building construction elements, landscaping, screening and articulation of the building. Upon query, Mr. Ashby confirmed a representative from Menard was unable to be in attendance at the meeting but will be present at the next Finance Committee and City Council meeting, and advised naming rights to a possible future athletic field were removed [from draft agreement provisions] pursuant to a request from Menard. There being no further comments or input, Mayor Kaysen advised the purpose of the hearing had been met and closed the hearing. Mayor Kaysen advised the agenda item (re: Resolution determining the sale of real property with Menard, Inc.) affiliated with the public hearing had been referred to Finance Committee for review/discussion, and the Committee meeting will be held Aug. 15, 2011 at 11:00 a.m., Room 122, Municipal Building, and was open to the public.

Mayor Kaysen opened a public hearing to gather public comment and input in regards to the City of Cheyenne's intention to make application to the Wyoming Business Council, Business Ready Community Grant and Loan Program, for funding through the Downtown Development Grant Program for funding assistance to provide a utility corridor to encourage development of downtown business space. Cindy Schneider, Grants Manager, provided information on the proposed project affiliated with the grant application, explaining the utility corridor is really a service corridor, approximately 22 ft. wide, that will include elevators, stairwells, utility easements, conference rooms and an atrium for use by the downtown and the public. She noted the corridor will assist in encouraging development of adjacent properties, and the project will act as a conduit to the vision of a vibrant downtown area by generating added activity and commerce, and sales tax revenue. Ms. Schneider advised if awarded the \$1,000,000 grant it will fund half of the corridor project, noting additional funding will come from the recently approved State Loan and Investment Board (SLIB) Consensus Block Grant funding and the Economic Development Joint Powers Board, which will be contingent upon receiving the grant. She reviewed the scheduling time frame for submittal of the grant. Tom Lyndsey spoke in favor of doing something with the vacant 2006 downtown fire site (site of the proposed project) and in support of private developers building infrastructure in the adjacent area, hopefully a hotel with underground parking and a restaurant; suggested the City give the 22 ft. City-owned corridor area to a private developer as an incentive, and commented that "filling the hole" is a priority. Ed Melko stated he was not particularly in favor of the project, but supports the application being submitted at this time, and questioned why a fence couldn't be put in place to block the hole from public vision. There being no further comments or input, Mayor Kaysen advised the purpose of the hearing had been met and closed the hearing.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District (Conditional) to LI Light Industrial District for Lots 2 & 3, Block 1, Hutchins Corner, 2nd Filing, Cheyenne, Wyoming (located west of and adjacent to Hutchins Drive, south of Campstool Road). Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present. (#3930)

[CA] Resolution approving Outside User Water/Sewer Services, by User's Agreement, with Three Rivers West, LLC, Lots 1-3, Block 2, Swan Ranch Rail Park, Third Filing, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5305)

Resolution approving the Annual Budget for Fiscal Year 2011-2012 of the Laramie County Community Juvenile Services Joint Powers Board. Upon inquiry, Tim Thorson, contract administrator for the Board, provided information on the operations budget and supplemental schedule, explaining the first year of the Board's existence was spent discussing priorities for funding, mostly from the state, and within the current budget year contracts for services will become active/implemented with money expended for projects. He advised the capital outlay for real property is for a juvenile services center being constructed at the County's Archer Complex. Reporting for Finance Committee, Mr. Valdez moved to adopt, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present. (#5306)

[CA] Resolution authorizing the Mayor to sign a Memorandum of Understanding with Laramie County to apply for the Edward Byrne Memorial Justice Assistance Grant Program. Motion (per Consent Agenda) carried. (#5307 Res.; #5710 MOU)

Resolution authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan Program, for funding through the Downtown Development Grant Program to provide a utility corridor to encourage development of downtown business. Mr. Valdez moved to adopt, seconded by Dr. Rinne. Motion carried. Voting “yes” -- all members of the governing body present. (#5308)

[CA] Resolution determining that the sale of real property owned by the City of Cheyenne, Wyoming would benefit the economic development of the City pursuant to Wyo. Stat. § 15-1-112(b) and authorizing the Mayor to sign a Purchase and Sale Agreement and a Development Agreement with Menard, Inc. for the sale of 23.87 acres of City-owned land platted as Lot 2, Block 1, Cahill Park Addition (located at the southeast corner of the intersection of Windmill Road and Dell Range Boulevard, Cheyenne, Wyoming)” -- referred to Finance Committee (sponsors - Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson, Mr. Valdez and Mayor Kaysen).

[CA] Preliminary Plat for Sundance Ridge II, a replat of Lots 1-6, Block One and Lots 1-6, Block Two, Sundance Ridge I, Cheyenne, Wyoming (located north of Storey Boulevard, on either side of Sycamore Road) -- referred to Public Services Committee.

[CA] Agreement between the City of Cheyenne, Laramie County, and the Cheyenne Downtown Development Authority for the purpose of administering the terms and conditions of the U. S. Environmental Protection Agency (EPA) Brownfields Assessment Coalition Grant. Motion (per Consent Agenda) carried. (#5715)

[CA] Contract between the City of Cheyenne and Laramie County School District No. 1 for School Resource Officers for the 2011 - 2012 school year. Motion (per Consent Agenda) carried. (#5716)

[CA] Software Maintenance Agreement between the City of Cheyenne, Police Department, and New World Systems Corporation for standard software maintenance support. Motion (per Consent Agenda) carried. (#5717)

[CA] Consideration of Grant Agreement for FAA Airport Improvement Program Project #3-56-0005-47 between the City of Cheyenne, the County of Laramie, and the Cheyenne Regional Airport Board for taxiway rehabilitation. Motion (per Consent Agenda) carried. (#5718)

User Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Stampede Junior “A” Hockey, LLC, to host the 2011-2012 season at the City owned Ice and Events Center. Mr. Valdez moved to approve, seconded by Mr. Brown. Upon inquiry concerning storage room usage, Mayor Kaysen confirmed there has been no Land and Water Conservation grant funds used for the facility that will affect the agreement. Upon inquiry on sales and consumption areas involving alcohol, Robin Feezer, Parks and Recreation staff, stated the consumption area will not include the lobby or front building areas. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Pierson voting “no”. (#5719)

[CA] Contract for Services between the City of Cheyenne, Office of Youth Alternatives, and Laramie County Community Juvenile Services Joint Powers Board to provide electronic monitoring services, intensive mentoring support, parenting education and support, and alcohol education and assessments by the Office of Youth Alternatives -- referred to Finance Committee.

[CA] Contract for Services between the City of Cheyenne, Office of Youth Alternatives, and Laramie County Community Juvenile Services Joint Powers Board for a Weekender Community Service Program to be conducted by the Office of Youth Alternatives -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Laramie County, Wyoming for a dually-commissioned Juvenile Compliance and Diversion Officer to assist with alternatives to juvenile detention, and improve monitoring of juvenile detention facilities -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne/Laramie County Corporation for Economic Development (LEADS) for industrial and economic development services -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #5697 between the City of Cheyenne and STC Construction Company for wear course for the Westland Road Overlay and Improvements Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$118,183.00). (#5697)

[CA] Consideration of Bid #M-1-12 for a contract between the City of Cheyenne and Reiman Corporation and Subsidiary, Cheyenne, Wyoming, for the Ames Avenue Underpass Street Repairs Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$609,458.50). (#5720)

[CA] Consideration of Bid #M-2-12 for a contract between the City of Cheyenne and Reiman Corporation, Cheyenne, Wyoming, for the East Cheyenne Greenway Phase IV Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-18-12 for a contract between the City of Cheyenne and Simon Contractors, Cheyenne, Wyoming, for the East Cheyenne Greenway Phase IIIb, Part 2, Union Pacific Railroad Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Retail liquor license application filed with the City Clerk's Office for Cadillac Ranch Bar, Inc. d/b/a Cadillac Ranch Bar, 3307 Nationway, Cheyenne, Wyoming. (License currently held by Cheyenne OTB, LLC d/b/a Wyoming OTB, 3307 Nationway, Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

Appointment of Belinda Kolb to the Cheyenne Historic Preservation Board. Mr. Brown moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Annual Report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course as required by Lease Agreement. Motion (per Consent Agenda) carried.

Under other business:

Mayor Kaysen noted an announcement of a public hearing was inadvertently not placed on the meeting agenda and requested City Clerk Carol Intlekofer read the announcement into the record. Clerk Intlekofer read the following: Announcement of a Public Hearing to be held August 22, 2011, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Ave., Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in portions of Sections 14 and 23, Township 13 North, Range 67 West, 6th P.M., Laramie County, Wyoming, (generally located between Interstate 25 and Clear Creek Parkway, South of West College Drive).

Edward Melko questioned the recent extension of the lease agreement with Post 6 baseball with regard to an extension being approved by the Mayor vs. City Council, and whether the Mayor had the authority to approve the extension. City Attorney Dan White advised the lease agreement requires a minimum of 60 days notice of termination of the lease, and expressed his opinion that under the scope of the resolution that had previously been adopted (i.e.: authorizing the Mayor to issue a notice of termination), that more time could be extended by the Mayor. He indicated the parties were close to reaching resolution of matters involved and that it was appropriate under the circumstances to extend the termination date. He stated a letter to Post 6 was issued by Mayor Kaysen in June, advising them the lease would be terminated within 60 days from the date of the letter, and advised in the meantime the City and Post 6 have continued negotiations and in a good faith effort the City has extended the lease termination date for another 60 days. Mayor Kaysen affirmed that Post 6 was negotiating in good faith. Donald James Perrott Macneil spoke in support of resolving lease agreement issues. Comments followed regarding the Mayor's decision on a 60 day extension.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:31 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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